

STATE OF NEW YORK

1285--A

Cal. No. 179

2025-2026 Regular Sessions

IN SENATE

January 9, 2025

Introduced by Sens. PERSAUD, JACKSON, ROLISON, SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- reported favorably from said committee, ordered to first report, amended on first report, ordered to a second report and ordered reprinted, retaining its place in the order of second report

AN ACT to amend the criminal procedure law, in relation to jury deliberations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "Tiarah
2 Poyau Act".

3 § 2. Section 310.30 of the criminal procedure law, as amended by chap-
4 ter 208 of the laws of 1980, is amended to read as follows:

5 § 310.30 Jury deliberation; request for information.

6 At any time during its deliberation, the jury may request the court
7 for further instruction or information with respect to the law, with
8 respect to the content or substance of any trial evidence, or with
9 respect to any other matter pertinent to the jury's consideration of the
10 case. Upon such a request, the court must direct that the jury be
11 returned to the courtroom and, after notice to both the people and coun-
12 sel for the defendant, and in the presence of the defendant, must give
13 such requested information or instruction as the court deems proper.
14 With the consent of the parties and upon the request of the jury for
15 further instruction with respect to a statute, the court may also give
16 to the jury copies of the text of any statute which, in its discretion,
17 the court deems proper. In addition, where the jury requests written
18 instructions regarding the elements of any offense submitted, or of any
19 defense or affirmative defense submitted in relation thereto, the court
20 may provide the jury with such written instructions as the jury has
21 requested and any other written instruction relevant to the instructions
22 requested by the jury that the court deems proper. Before giving to the

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00079-03-5

1 jury such written instructions regarding the elements of any offense or
2 of any defense or affirmative defense pursuant to this section, the
3 court shall permit counsel to examine such written instructions, shall
4 afford counsel an opportunity to be heard, shall mark such written
5 instructions as a court exhibit and shall read the instructions to the
6 jury.

7 § 3. This act shall take effect on the one hundred twentieth day after
8 it shall have become a law.